



Carriage by Railway Act 1972

1972 CHAPTER 33

An Act to amend the law relating to carriage by rail in connection with certain international conventions, and for purposes connected therewith. [29th June 1972]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The provisions of the Convention known as the **Scheduled Additional Convention to the International Convention concerning the Carriage of Passengers and Luggage by Rail** (in this Act referred to as “the **Additional Convention**”), as set out in the Schedule to this Act, shall have the force of law in the United Kingdom so far as they relate to the liability of railway undertakings in respect of the death of or injury to passengers and damage to or loss of articles which they have with them, and shall have such effect notwithstanding anything in section 43(7) of the Transport Act 1962 (terms on which passengers may be carried by rail). **to have the force of law.**

(2) If there is any inconsistency between the text in English in Part I of the Schedule to this Act and the text in French in Part II of that Schedule, the text in French shall prevail.

(3) In this Act the Convention referred to in paragraph 1(a) of article 1 in the Schedule to this Act is referred to as “the **Railway Passenger Convention**” and the Convention referred to in paragraph 1 (b) of that article is referred to as “the **Railway Freight Convention**”.

(4) In this Act “passengers” has the meaning assigned to it by article 1 in the Schedule to this Act and any reference to

things done in accordance with, or to rights conferred or provision made by, the Railway Passenger Convention or the Railway Freight Convention includes a reference to things done in accordance with, or to rights conferred or provision made by, a contract of carriage which incorporates the provisions of the Railway Passenger Convention or the Railway Freight Convention, as the case may require.

(5) This section shall come into force on such day as Her Majesty may by Order in Council certify to be the day on which the Additional Convention comes into force as regards the United Kingdom.

Designation of
Contracting
States.

2.—(1) Her Majesty may by Order in Council from time to time certify who are the Contracting States for the purposes of the Additional Convention.

(2) An Order in Council under this section may also certify whether Her Majesty's Government in the United Kingdom or any other Contracting State have made a declaration in accordance with paragraph 2 of article 1 in the Schedule to this Act.

(3) An Order in Council under this section shall, except so far as it has been superseded by a subsequent Order, be conclusive evidence of the matters so certified.

Fatal
accidents.

3.—(1) Without prejudice to article 18 in the Schedule to this Act, where, by virtue of paragraph 2 of article 3 in that Schedule any person has a right of action in respect of the death of a passenger, by reason of his being a person whom the passenger was under a legally enforceable duty to maintain,—

1846 c. 93.

(a) no action in respect of the passenger's death may be brought for the benefit of that person under the Fatal Accidents Act 1846 or by or on behalf of that person under any rule of Scots law; but

(b) nothing in section 3 of that Act (not more than one action in respect of the same subject matter of complaint) shall prevent an action being brought under that Act for the benefit of any other person.

1959 c. 65.

(2) Section 2 of the Fatal Accidents Act 1959 (exclusion of certain benefits in assessment of damages) shall apply in relation to an action brought by any person under the Additional Convention, including such an action brought in Scotland, as it applies in relation to an action under the Fatal Accidents Act 1846.

(3) Where separate proceedings are brought under the Additional Convention and under the Fatal Accidents Act 1846 in respect of the death of a passenger, a court, in awarding

damages under that Act, shall take account of any damages awarded in the proceedings brought under the Additional Convention and shall have jurisdiction to make any part of its award conditional on the result of those proceedings.

(4) In the application of this section to Northern Ireland, the reference in subsection (2) above to section 2 of the Fatal Accidents Act 1959 shall be construed as a reference to section 2 of the Fatal Accidents Act (Northern Ireland) 1959. 1959 c. 65. 1959 c. 17 (N.I.).

4.—(1) A court before which proceedings are brought to enforce a liability which is limited by article 7 in the Schedule to this Act may at any stage of the proceedings make any such order as appears to the court to be just and equitable in view of the provisions of the said article 7 and of any other proceedings which have been, or are likely to be, commenced in the United Kingdom or elsewhere to enforce the liability in whole or in part. Power of court to take account of other proceedings relating to damage to or loss of articles.

(2) Without prejudice to subsection (1) above, a court before which proceedings are brought to enforce a liability which is limited by the said article 7 shall, where the liability is, or may be, partly enforceable in other proceedings in the United Kingdom or elsewhere, have jurisdiction to award an amount less than the court would have awarded if the limitation applied solely to the proceedings before the court, or to make any part of its award conditional on the result of any other proceedings.

5.—(1) Subject to subsection (2) below, Part I of the Foreign Judgments (Reciprocal Enforcement) Act 1933 (in this section referred to as "the Act of 1933") shall apply, whether or not it would otherwise have so applied, to any judgment which— Registration of foreign judgments under the Additional Convention. 1933 c. 13.

- (a) has been entered, as mentioned in paragraph 1 of article 20 in the Schedule to this Act, by a court of a contracting State, other than the United Kingdom, and
- (b) has become enforceable under the law applied by that court.

(2) In the application of Part I of the Act of 1933 in relation to any such judgment as is referred to in subsection (1) above, section 4 of that Act shall have effect with the omission of subsections (2) and (3).

(3) The registration, in accordance with Part I of the Act of 1933, of any such judgment as is referred to in subsection (1) above shall constitute, in relation to that judgment, compliance with the required formalities for the purposes of paragraph 1 of article 20 in the Schedule to this Act.

Actions, judgments and decrees relating to carriage in accordance with Conventions.

6.—(1) No action of any kind relating to a liability in respect of which provision is made by the Railway Passenger Convention or the Railway Freight Convention may be brought against a railway undertaking or its servants or agents except in accordance with that Convention.

(2) Where by virtue of any provision made by the Railway Passenger Convention or the Railway Freight Convention or by virtue of article 14 in the Schedule to this Act,—

(a) an action of any description may be brought only against a particular railway undertaking, or

(b) the bringing of an action against one railway undertaking extinguishes any right to proceed against another railway undertaking in respect of the same cause of action,

1935 c. 30.

then, notwithstanding anything in section 6(1)(a) of the Law Reform (Married Women and Tortfeasors) Act 1935 or any rule of Scots law enabling further proceedings to be instituted, proceedings may not be brought against any other person in respect of the same cause of action.

1867 c. 127.

(3) So much of section 4 of the Railway Companies Act 1867 as prevents the rolling stock and other assets of a railway company, as defined in that Act, from being taken in execution shall apply also in relation to any railway undertaking—

(a) carrying passengers or their luggage in accordance with the Railway Passenger Convention, or

(b) carrying goods in accordance with the Railway Freight Convention,

if the judgment (within the meaning of that Act) on which the execution issues is given by a court in the United Kingdom in an action arising on a contract which incorporates the provisions of the Railway Passenger Convention or the Railway Freight Convention, as the case may require.

1867 c. 126.

(4) So much of section 4 of the Railway Companies (Scotland) Act 1867 as prevents the rolling stock and other assets of a railway company, as defined in that Act, from being attached by diligence shall apply also in relation to any railway undertaking—

(a) carrying passengers or their luggage in accordance with the Railway Passenger Convention, or

(b) carrying goods in accordance with the Railway Freight Convention,

if the decree (within the meaning of that Act) on which the diligence proceeds is pronounced by a court in the United Kingdom in any such action as is referred to in subsection (3) above.

(5) A judgment given or decree pronounced by a court in the United Kingdom in any such action as is referred to in subsection (3) above may not be enforced by execution or diligence against—

- (a) any railway wagon owned by a person other than a railway undertaking, nor
- (b) any transport equipment contained in, or belonging to the owner of, such a wagon,

unless the owner has his principal place of business in the United Kingdom.

(6) In the application of this section to Northern Ireland—

- (a) in subsection (2), for the reference to section 6(1)(a) of the Law Reform (Married Women and Tortfeasors) 1935 c. 30. Act 1935 there shall be substituted a reference to section 16(1)(a) of the Law Reform (Miscellaneous Provisions) Act (Northern Ireland) 1937;
- (b) in subsection (3), for the words “in execution” there shall be substituted the words “under the Judgments (Enforcement) Act (Northern Ireland) 1969” and for the words “on which the execution issues” there shall be substituted the words “in respect of which an application for enforcement is made under the said Act of 1969,”; and
- (c) in subsection (5) for the words “by execution or diligence” there shall be substituted the words “under the said Act of 1969”.

7.—(1) In any case where goods are carried in accordance with the Railway Freight Convention, the consignee shall not be entitled to enforce, whether as owner of the goods, as the person to whom they have been consigned or otherwise, any right against the railway undertaking in respect of the goods or their carriage, except in accordance with the Convention.

Rights and obligations of consignee in relation to Railway Freight Convention.

(2) If, in any case where goods are carried in accordance with the Railway Freight Convention, the consignee—

- (a) accepts the consignment note in respect of the goods, or
- (b) purports to exercise any right conferred on him by the Convention in respect of the goods or the contract of carriage (whether to require the delivery of the consignment note or the goods, or to vary the contract of carriage, or otherwise)

he shall thereby be treated as if he were a party to the contract of carriage and as if he had been such a party from the time that the contract came into existence; and rights and obligations

conferred or imposed on him under the terms of the Convention shall be enforceable by or against him accordingly.

(3) In this section "the consignment note", in relation to any goods, means the consignment note accompanying the goods, prepared in accordance with the Railway Freight Convention and constituting evidence of the contract of carriage; and references in this section to the consignee include references to a person to whom, in accordance with the Railway Freight Convention, the consignee named in the consignment note has directed that the goods are to be delivered.

Recovery of
surcharges and
compensation
under Railway
Freight and
Passenger
Conventions.

8.—(1) In any case where, in accordance with the Railway Freight Convention, a railway undertaking is entitled to impose a surcharge in respect of any goods carried in accordance with that Convention or with respect to the carriage or loading of any goods so carried, then

- (a) notwithstanding any provision of the law relating to penalties or otherwise, and
- (b) without prejudice to any other method of recovery or to any lien which the railway undertaking may have on the goods for any other amount,

the amount of the surcharge shall be treated for all purposes as a charge in respect of which the railway undertaking, as a carrier, is entitled to a lien.

(2) In so far as any provision of the Railway Freight Convention or the Railway Passenger Convention provides for the payment of compensation calculated at a fixed rate in respect of any delay in the despatch, conveyance or delivery of any goods, compensation calculated in accordance with that provision shall be recoverable as liquidated damages notwithstanding—

- (a) that the person entitled to the compensation may be unable to prove that he has suffered any damage by reason of the delay, or
- (b) that the damages to which he would have been entitled apart from this subsection would be less than the amount of the compensation determined in accordance with that provision.

Amendments
consequential
on revision of
Conventions.

9.—(1) If at any time it appears to Her Majesty in Council that Her Majesty's Government in the United Kingdom have agreed to any revision of the Additional Convention, whether such revision operates by way of amendment of the text of the Additional Convention as then in force or takes the form of a new Convention or a part of a new Convention to substantially the same effect as the provisions set out in the

Schedule to this Act, Her Majesty may by Order in Council make such amendments—

(a) of the provisions set out in the Schedule to this Act, and

(b) of the definition of and references in this Act to, or to particular provisions of, the Additional Convention,

as appear to Her to be appropriate in consequence of the revision.

(2) If at any time it appears to Her Majesty in Council that the Convention which for the purposes of this Act is at that time the Railway Passenger Convention or the Railway Freight Convention has been rendered void on the coming into force of a new Convention which is substantially to the same effect as the previous Convention and in respect of which Her Majesty's Government in the United Kingdom are one of the Contracting States, Her Majesty may by Order in Council make such amendments of the definition of "the Railway Passenger Convention" or, as the case may require, "the Railway Freight Convention" as appear to Her appropriate to secure that references in this Act to the Railway Passenger Convention or the Railway Freight Convention, as the case may be, refer to the new Convention.

(3) An Order in Council under this section shall not be made unless a draft of the Order has been laid before Parliament and approved by a resolution of each House of Parliament.

10.—(1) In the application of this Act to Northern Ireland—

Application to
Northern
Ireland.

(a) any reference to an enactment of the Parliament of the United Kingdom which extends to Northern Ireland is a reference to that Act as it applies in Northern Ireland; and

(b) any reference to an enactment of the Parliament of Northern Ireland or to any other enactment which that Parliament has power to amend shall be construed as a reference to that enactment as amended by any Act of that Parliament, whether passed before or after this Act, and to any enactment of that Parliament for the time being in force which re-enacts the said enactment with or without modification.

(2) For the purposes of section 6 of the Government of 1920 c. 67. Ireland Act 1920, this Act shall, so far as it relates to matters within the powers of the Parliament of Northern Ireland, be deemed to be an Act passed before the appointed day within the meaning of that section.

Orders in
Council.

11. An Order in Council made under any of the preceding provisions of this Act may contain such transitional and supplementary provisions as appear to Her Majesty to be expedient and may be varied or revoked by a subsequent Order in Council made under that provision.

Application
to Crown.

12. This Act shall bind the Crown.

Short title,
interpretation
and
commence-
ment.

13.—(1) This Act may be cited as the Carriage by Railway Act 1972.

(2) Except in so far as the context otherwise requires, any reference in this Act to any other enactment shall be construed as a reference to that enactment as amended by or under any other enactment.

(3) Sections 2 to 5 above and, so far as it relates to actions brought under the Additional Convention, section 6(2) above shall come into force on the day certified under section 1(5) above.

(4) Sections 7 and 8 above and, except as provided by subsection (3) above, section 6 above shall come into force on such day as Her Majesty may by Order in Council appoint; and different days may be so appointed for different provisions of those sections.

(5) Nothing in any provision of this Act shall affect any rights or liabilities arising out of an occurrence before the day on which that provision comes into force.

SCHEDULE

ADDITIONAL CONVENTION TO THE INTERNATIONAL CONVENTION CONCERNING THE CARRIAGE OF PASSENGERS AND LUGGAGE BY RAIL

PART I

THE ENGLISH TEXT

CONVENTION RELATING TO THE LIABILITY OF THE RAILWAY FOR DEATH OF AND PERSONAL INJURY TO PASSENGERS

Article 1

Field of application

1. This Convention shall govern the liability of the railway for damage caused to passengers by an accident occurring on the territory of a State which is a party to this Convention. For the purposes of this Convention "passengers" means:

- (a) passengers carried in accordance with the International Convention concerning the Carriage of Passengers and Luggage by Rail (CIV) of 25th February, 1961;
- (b) attendants accompanying consignments of goods carried in accordance with the International Convention concerning the Carriage of Goods by Rail (CIM) of 25th February, 1961.

2. Each Contracting State may, on signing this Convention or depositing its instrument of ratification or accession, declare that it reserves the right not to apply this Convention to passengers who are subjects of, or persons having their usual place of residence in that State and who sustain an accident on its territory.

Article 2

Extent of liability

1. The railway shall be liable for damage resulting from the death of, or personal injury or any other bodily or mental harm to, a passenger, caused by an accident arising out of the operation of the railway and happening while the passenger is in, entering or alighting from a train.

The railway shall also be liable for damage to, or total or partial loss of any articles which the passenger who has sustained such an accident had either on him or with him as hand luggage, including any animals which he had with him.

2. The railway shall be relieved of liability if the accident has been caused by circumstances not connected with the operation of the railway and which the railway, in spite of having taken the care required in the particular circumstances of the case, could not avoid and the consequences of which it was unable to prevent.

3. The railway shall be relieved wholly or partly of liability to the extent that the accident is due to the passenger's wrongful act or neglect or to behaviour on his part not in conformity with the normal conduct of passengers.

4. The railway shall be relieved of liability if the accident is due to a third party's behaviour which the railway, in spite of taking the care required in the particular circumstances of the case, could not avoid and the consequences of which it was unable to prevent.

If the railway is not relieved of liability in accordance with the preceding sub-paragraph, the railway shall be wholly liable up to the limits laid down in this Convention, but without prejudice to any right of action which the railway may have against the third party.

5. This Convention shall not affect any liability which may be incurred by the railway in cases not provided for under paragraph 1.

6. For the purposes of this Convention, the "responsible railway" is that which, according to the list of lines provided for in Article 59 of CIV, operates the line on which the accident occurs. If, in accordance with the aforementioned list, there is joint operation of the line by two railways, each of them shall be liable.

Article 3

Damages in case of death of the passenger

1. In the case of the death of the passenger the damages shall include:

- (a) any necessary expenses following on the death, in particular the cost of transport of the body, burial and cremation;
- (b) if death does not occur at once, the damages defined in Article 4.

2. If, through the death of the passenger, persons towards whom he had, or would have had in the future, a legally enforceable duty to maintain are deprived of their support, such persons shall also be indemnified for their loss. Rights of action for damages by persons whom the passenger was maintaining without being legally bound to do so shall be governed by national law.

Article 4

Damages in case of personal injury to the passenger

In the case of personal injury or any other bodily or mental harm to the passenger the damages shall include:

- (a) any necessary expenses, in particular the cost of medical treatment and transport;
- (b) compensation for loss due to total or partial incapacity to work, or to increased expenditure on his personal requirements necessitated by the injury.

Article 5

Compensation for other injuries

National law shall determine whether and to what extent the railway shall be bound to pay damages for injuries other than those for which there is provision in Articles 3 and 4, in particular for mental or physical pain and suffering (*pretium doloris*) and for disfigurement.

Article 6

*Form and limit of damages in case of death of, or
personal injury to the passenger*

1. The damages under Article 3 (2) and Article 4 (b) shall be awarded in the form of a lump sum; however, if national law permits payment of an annuity, damages shall be awarded in this form if so requested by the injured passenger or the claimants designated in Article 3 (2).

2. The amount of damages to be awarded under paragraph 1 shall be determined in accordance with national law. However, in the event of the national law providing for a maximum limit of less than 200,000 francs, the limit per passenger shall, for the purposes of this Convention, be fixed at 200,000 francs in the form of a lump sum or of an annuity corresponding to that amount.

Article 7

Limit of damages in case of damage to or loss of articles

When, under the provisions of this Convention, the railway is liable to pay damages for damage to, or for total or partial loss of any articles which the passenger who has sustained an accident had either on him or with him as hand luggage, including any animals which he had with him, compensation for the damage or loss may be claimed up to the sum of 2,000 francs per passenger.

Article 8

Amount of damages in case of wilful misconduct or gross negligence

The provisions of Articles 6 and 7 of this Convention or those of the national law which limit compensation to a fixed amount shall not apply if the damage results from wilful misconduct or gross negligence of the railway.

Article 9

Interest and refund of compensation

1. The claimant shall be entitled to claim interest on compensation which shall be calculated at the rate of 5 per cent per annum. Such interest shall accrue from the date of the claim, or, if a claim has not been made, from the date on which legal proceedings are instituted, save that for compensation due under Articles 3 and 4, interest shall accrue only from the day on which the events relevant to its assessment occurred, if that day is later than the date of the claim or the date on which legal proceedings were instituted.

2. Any compensation improperly obtained shall be refunded.

Article 10

Prohibition of limitation of liability

Any terms or conditions of carriage or special agreements concluded between the railway and the passenger which purport to exempt the railway in advance, either totally or partially, from liability under

this Convention, or which have the effect of reversing the burden of proof resting on the railway, or which provide for limits lower than those laid down in Article 6 (2) and Article 7, shall be null and void. Such nullity shall not, however, avoid the contract of carriage which shall remain subject to the provisions of CIV and this Convention.

Article 11

Liability of railways for their servants

The railway shall be liable in respect of servants in its own employ and in respect of any other persons whom it employs to perform carriage for which it is responsible.

If, however, railway servants, at the request of a passenger, render services which the railway itself is under no obligation to render, they shall be deemed to act on behalf of the passenger to whom the services are rendered.

Article 12

Bringing of actions not within the provisions of this Convention

No action of any kind shall be brought against a railway in respect of its liability under Article 2 (1) of this Convention, except subject to the conditions and limitations laid down in this Convention.

The same shall apply to any action brought against persons for whom the railway is liable under Article 11.

Article 13

Claims

1. The making of claims for damages under this Convention is not obligatory; they may be made against one of the following railways provided that it has its principal office on the territory of a State party to this Convention:

- (1) the railway responsible; if, in accordance with Article 2 (6), two railways are responsible, against one of them;
- (2) the railway of the place of departure;
- (3) the railway of the place of destination;
- (4) the railway of the place of the passenger's domicile or of his usual place of residence.

2. Claims shall be made in writing. The documents which a claimant thinks it advisable to attach to his claim shall be produced either in the original or by copies duly authenticated if the railway so requires.

Article 14

Railway against which an action may be brought

An action for damages brought under this Convention shall only be brought against the responsible railway.

In the case of joint operation by two railways the claimant shall have a right of election as to which of the two railways he will sue. This right shall be extinguished as soon as an action has been instituted against one of them.

*Article 15**Jurisdiction*

Actions brought under this Convention may only be instituted in the competent court of the State on whose territory the accident to the passenger occurred, unless otherwise provided in agreements between States, or in any licence or other document authorising the operation of the railway concerned.

*Article 16**Extinction of rights of action*

1. A claimant shall lose his right of action if he does not give notice of the accident to a passenger to one of the railways to which a claim may be presented in accordance with Article 13 within three months of his becoming aware of the damage.

When notice of the accident is given orally by the claimant, confirmation of this oral notice must be delivered to the claimant by the railway to which the accident has been notified.

2. Nevertheless the right of action shall not be extinguished:

- (a) if, within the period of time provided for in paragraph 1, the claimant has made a claim to one of the railways designated in Article 13 (1);
- (b) if the claimant proves that the accident was caused by the wrongful act or neglect of the railway;
- (c) if notice of the accident has not been given, or has been given late, as a result of circumstances for which the claimant is not responsible;
- (d) if during the period of time specified in paragraph (1), the railway responsible—or one of the two railways if in accordance with Article 2 (6) two railways are responsible—knows of the accident to the passenger through other means.

*Article 17**Limitation of actions*

1. The periods of limitation for actions for damages brought under this Convention shall be:

- (a) in the case of the passenger who has sustained an accident, three years from the day after the accident;
- (b) in the case of other claimants, three years from the day after the death of the passenger, or five years from the day after the accident, whichever is the earlier.

2. When a claim is made to the railway in accordance with Article 13, the three periods of limitation provided for in paragraph 1 shall be suspended until such date as the railway rejects the claim by notification in writing, and returns the documents attached thereto. If part of the claim is admitted, the period of limitation shall start to run again only in respect of that part of the claim still in dispute. The

burden of proof of the receipt of the claim or of the reply and of the return of the documents, shall rest with the party relying upon these facts.

The running of the period of limitation shall not be suspended by further claims having the same object.

3. A right of action which has become barred by lapse of time may not be exercised even by way of counterclaim or set-off.

4. Subject to the foregoing provisions, the limitation of actions shall be governed by national law.

Article 18

National law

1. In the absence of provisions in this Convention, national law shall apply.

2. For the purpose of this Convention, "national law" means the law of the State on whose territory the accident to the passenger occurs, including the rules relating to conflict of laws.

Article 19

General rules of procedure

In the case of legal proceedings arising out of the application of this Convention, the procedure to be followed shall be that of the competent court, subject to any provisions to the contrary in this Convention.

Article 20

Execution of judgments—Security for costs

1. Judgments entered by the competent court under the provisions of this Convention after trial, or by default, shall, when they have become enforceable under the law applied by that court, become enforceable in any of the other Contracting States as soon as the formalities required in the State concerned have been complied with. The merits of the case shall not be the subject of further proceedings.

The foregoing provisions shall not apply to interim judgments nor to awards of damages in addition to costs, against a plaintiff who fails in his action.

Settlements concluded between the parties before the competent court with a view to putting an end to a dispute, and which have been entered on the record of that court, shall have the force of a judgment of that court.

2. Security for costs shall not be required in proceedings arising out of the provisions of this Convention.

Article 21

Monetary unit

The amounts stated in francs in this Convention shall be deemed to relate to the gold franc weighing 10/31 of a gramme and being of millesimal fineness 900.

Article 22

Carriage by more than one mode of transport

1. Subject to the provisions of paragraph 2 of this Article, this Convention shall not apply to damage arising in the course of carriage by road services or shipping services included in the list of lines referred to in Article 59 of CIV.

2. However, where railway vehicles are carried by ferry, this Convention shall apply to damage referred to in Article 2 (1) and caused by an accident arising out of the operation of the railway which happens while the passenger is in, entering or alighting from the said vehicles.

For the purpose of the application of this paragraph, the State on whose territory the accident occurred means the State whose flag is flown by the ferry.

3. When, because of exceptional circumstances, the railway finds itself obliged temporarily to suspend operations and itself carries the passengers or has them carried by another mode of transport, it shall be liable in accordance with the law relating to that mode of transport. Nevertheless, the provisions of Articles 13 to 17, 18 (2), 19 and 20 of this Convention shall remain applicable.

Article 23

Liability in case of nuclear incidents

The railway shall not be liable under this Convention for damage caused by a nuclear incident when pursuant to special provisions in force in a Contracting State governing liability in the field of nuclear energy the operator of a nuclear installation or another person who is substituted for him is liable for the damage.

[The provisions of articles 24 to 28 relating to signature, ratification and entry into force, accession, duration and revision and official translations are not reproduced.]

PART II

THE FRENCH TEXT

CONVENTION RELATIVE A LA RESPONSABILITE DU CHEMIN DE
FER POUR LA MORT ET LES BLESSURES DE VOYAGEURS*Article 1^{er}**Champ d'application*

1.—La présente Convention règle la responsabilité du chemin de fer pour les dommages causés aux voyageurs par un accident survenu sur le territoire d'un Etat partie à la présente Convention. Au sens de la présente Convention, on entend par «voyageurs»:

- a) les voyageurs dont le transport est régi par la Convention internationale concernant le transport des voyageurs et des bagages par chemins de fer (CIV) du 25 février 1961,
- b) les convoyeurs des envois effectués conformément à la Convention internationale concernant le transport des marchandises par chemins de fer (CIM) du 25 février 1961.

2.—Chaque Etat contractant pourra, au moment où il signe la présente Convention ou dépose son instrument de ratification ou d'adhésion, déclarer qu'il se réserve le droit de ne pas appliquer la présente Convention aux voyageurs victimes d'accidents survenus sur son territoire, lorsque ceux-ci sont ses ressortissants ou des personnes ayant leur résidence habituelle dans cet Etat.

*Article 2**Etendue de la responsabilité*

1.—Le chemin de fer est responsable des dommages résultant de la mort, des blessures ou de toute autre atteinte à l'intégrité physique ou mentale d'un voyageur causées par un accident en relation avec l'exploitation ferroviaire survenu pendant que le voyageur séjourne dans les véhicules, qu'il y entre ou qu'il en sort.

Le chemin de fer est, en outre, responsable des dommages résultant de l'avarie ou de la perte totale ou partielle des objets que le voyageur victime d'un tel accident avait, soit sur lui, soit avec lui comme colis à main, y compris les animaux.

2.—Le chemin de fer est déchargé de cette responsabilité si l'accident a été causé par des circonstances extérieures à l'exploitation que le chemin de fer, en dépit de la diligence requise d'après les particularités de l'espèce, ne pouvait pas éviter et aux conséquences desquelles il ne pouvait pas obvier.

3.—Le chemin de fer est déchargé en tout ou en partie de cette responsabilité dans la mesure où l'accident est dû à une faute du voyageur ou à un comportement de celui-ci qui n'est pas conforme à la conduite normale des voyageurs.

4.—Le chemin de fer est déchargé de cette responsabilité si l'accident est dû au comportement d'un tiers que le chemin de fer, en dépit de la diligence requise d'après les particularités de l'espèce, ne pouvait pas éviter et aux conséquences duquel il ne pouvait pas obvier.

Si la responsabilité du chemin de fer n'est pas exclue selon l'alinéa précédent, le chemin de fer répond pour le tout dans les limites de la présente Convention et sans préjudice de son recours éventuel contre le tiers.

5.—La présente Convention n'affecte pas la responsabilité qui peut incomber au chemin de fer pour les cas non prévus au § 1.

6.—Le «chemin de fer responsable» au sens de la présente Convention est celui qui, d'après la liste des lignes prévue à l'article 59 de la CIV, exploite la ligne sur laquelle l'accident s'est produit. S'il y a, d'après la liste mentionnée, coexploitation par deux chemins de fer, chacun de ces chemins de fer est responsable.

Article 3

Dommages-intérêts en cas de mort du voyageur

1.—En cas de mort du voyageur, les dommages-intérêts comprennent:

- a) les frais nécessaires consécutifs au décès, notamment ceux du transport du corps, d'inhumation et d'incinération;
- b) si la mort n'est pas survenue immédiatement, les dommages-intérêts définis à l'article 4.

2.—Si, par la mort du voyageur, des personnes envers lesquelles il avait ou aurait eu à l'avenir une obligation alimentaire, en vertu de la loi, sont privées de leur soutien, il y a également lieu de les indemniser de cette perte. L'action en dommages-intérêts des personnes dont le voyageur assumait l'entretien sans y être tenu par la loi reste soumise au droit national.

Article 4

Dommages-intérêts en cas de blessures du voyageur

En cas de blessures ou de toute autre atteinte à l'intégrité physique ou mentale du voyageur, les dommages-intérêts comprennent:

- a) les frais nécessaires, notamment ceux de traitement et de transport;
- b) la réparation du préjudice causé, soit par l'incapacité de travail totale ou partielle, soit par l'accroissement des besoins.

Article 5

Réparation d'autres préjudices

Le droit national détermine si et dans quelle mesure le chemin de fer est tenu à verser des dommages-intérêts pour des préjudices autres que ceux prévus aux articles 3 et 4, notamment les préjudices moral et physique (*pretium doloris*) et esthétique.

Article 6

Forme et limitation des dommages-intérêts en cas de mort ou de blessures du voyageur

1.—Les dommages-intérêts prévus à l'article 3, § 2, et à l'article 4, lettre b), doivent être alloués sous forme de capital; toutefois, si le

droit national permet l'allocation d'une rente, ils sont alloués sous cette forme lorsque le voyageur lésé ou les ayants droit désignés à l'article 3, § 2, le demandent.

2.—Le montant des dommages-intérêts à allouer en vertu du § 1 est déterminé selon le droit national. Toutefois, pour l'application de la présente Convention, il est fixé une limite maximale de 200,000 francs en capital ou en rente annuelle correspondant à ce capital, pour chaque voyageur, dans le cas où le droit national prévoit une limite maximale d'un montant inférieur.

Article 7

Limitation des dommages-intérêts en cas d'avarie ou de perte d'objets

Quand, en vertu des dispositions de la présente Convention, des dommages-intérêts pour avarie ou pour perte totale ou partielle des objets que le voyageur victime d'un accident avait, soit sur lui, soit avec lui comme colis à main, y compris les animaux, sont mis à la charge du chemin de fer, il peut être réclamé la réparation du dommage, jusqu'à concurrence de 2000 francs par voyageur.

Article 8

Montant des dommages-intérêts en cas de dol ou de faute lourde

Les dispositions des articles 6 et 7 de la présente Convention ou celles prévues par le droit national qui limitent à un montant déterminé les indemnités ne s'appliquent pas si le dommage résulte d'un dol ou d'une faute lourde du chemin de fer.

Article 9

Intérêts et restitution des indemnités

1.—L'ayant droit peut demander des intérêts de l'indemnité, qui sont calculés à raison de cinq pour cent l'an. Ces intérêts courent du jour de la réclamation administrative ou, s'il n'y a pas eu de réclamation, du jour de la demande en justice. Toutefois, pour les indemnités dues en vertu des articles 3 et 4, les intérêts ne courent que du jour où les faits qui ont servi à la détermination de leur montant se sont produits, si ce jour est postérieur à celui de la réclamation ou de la demande en justice.

2.—Toute indemnité indûment perçue doit être restituée.

Article 10

Interdiction de limiter la responsabilité

Les dispositions tarifaires et les accords particuliers conclus entre le chemin de fer et le voyageur, qui tendent à exonérer d'avance, totalement ou partiellement, le chemin de fer de sa responsabilité en vertu de la présente Convention, ou qui ont pour effet de renverser le fardeau de la preuve incombant au chemin de fer, ou qui établissent des limites inférieures à celles qui sont fixées à l'article 6, § 2, et à l'article 7, sont

nuls de plein droit. Cette nullité n'entraîne toutefois pas celle du contrat de transport, qui reste soumis aux dispositions de la CIV et de la présente Convention.

Article 11

Responsabilité du chemin de fer pour ses agents

Le chemin de fer est responsable des agents attachés à son service et des autres personnes qu'il emploie pour l'exécution d'un transport dont il est chargé.

Toutefois, si, à la demande des voyageurs, les agents du chemin de fer leur rendent des services qui n'incombent pas au chemin de fer, ils sont considérés comme agissant pour le compte des voyageurs à qui ils rendent ces services.

Article 12

Exercice d'actions non prévues par la présente Convention

Dans les cas prévus à l'article 2, § 1, toute action en responsabilité, à quelque titre que ce soit, ne peut être exercée contre le chemin de fer que dans les conditions et limites prévues par la présente Convention.

Il en est de même pour toute action exercée contre les personnes dont le chemin de fer répond en vertu de l'article 11.

Article 13

Réclamations administratives

1.—Les réclamations en dommages-intérêts en vertu de la présente Convention sont facultatives; elles peuvent être présentées à l'un des chemins de fer suivants, pour autant qu'il ait son siège social sur le territoire d'un Etat partie à la dite Convention:

- 1° le chemin de fer responsable; si d'après l'article 2, § 6, deux chemins de fer sont responsables, à l'un de ceux-ci;
- 2° le chemin de fer de départ;
- 3° le chemin de fer de destination;
- 4° le chemin de fer du domicile ou de la résidence habituelle du voyageur.

2.—Les réclamations doivent être adressées par écrit. Les pièces que l'ayant droit juge utile de joindre à sa réclamation doivent être présentées soit en originaux, soit en copies, celles-ci dûment légalisées si le chemin de fer le demande.

Article 14

Chemin de fer contre lequel l'action judiciaire peut être exercée

L'action judiciaire en dommages-intérêts fondée sur la présente Convention ne peut être exercée que contre le chemin de fer responsable.

En cas de coexploitation par deux chemins de fer, le demandeur a le choix entre ceux-ci. Ce droit d'option s'éteint dès que l'action est intentée contre l'un d'eux.

Article 15**Compétence**

Les actions judiciaires fondées sur la présente Convention ne peuvent être intentées que devant le juge compétent de l'Etat sur le territoire duquel l'accident du voyageur s'est produit, à moins qu'il n'en soit décidé autrement dans les accords entre Etats ou les actes de concession.

Article 16**Extinction des actions**

1.—L'ayant droit perd son droit d'action s'il ne signale pas l'accident du voyageur, dans les trois mois à compter de la connaissance du dommage, à l'un des chemins de fer auxquels une réclamation administrative peut être présentée selon l'article 13.

Lorsque l'accident est signalé verbalement par l'ayant droit, attestation de cet avis verbal doit lui être délivrée par le chemin de fer auquel l'accident a été signalé.

2.—Toutefois, l'action n'est pas éteinte:

- a) si, dans le délai prévu au § 1, l'ayant droit a présenté une réclamation administrative auprès de l'un des chemins de fer désignés à l'article 13, § 1;
- b) si l'ayant droit fournit la preuve que l'accident a eu pour cause une faute du chemin de fer;
- c) si l'accident n'a pas été signalé, ou a été signalé en retard, à la suite de circonstances qui ne sont pas imputables à l'ayant droit;
- d) si, pendant le délai mentionné au § 1, le chemin de fer responsable, ou, si d'après l'article 2, § 6, deux chemins de fer sont responsables, l'un de ceux-ci, a eu connaissance de l'accident du voyageur par une autre voie.

Article 17**Prescription des actions**

1.—Les actions en dommages-intérêts fondées sur la présente Convention sont prescrites:

- a) pour la victime, par trois ans à compter du lendemain de l'accident;
- b) pour les autres ayants droit, par trois ans à compter du lendemain du décès de la victime, sans que ce délai puisse toutefois dépasser cinq ans à compter du lendemain de l'accident.

2.—En cas de réclamation administrative adressée au chemin de fer conformément à l'article 13, les trois délais de prescription prévus au § 1 sont suspendus jusqu'au jour où le chemin de fer rejette la réclamation par écrit et restitue les pièces qui y étaient jointes. En cas d'acceptation partielle de la réclamation, la prescription ne reprend son cours que pour la partie de la réclamation qui reste litigieuse. La

preuve de la réception de la réclamation ou de la réponse et celle de la restitution des pièces sont à la charge de la partie qui invoque ce fait.

Les réclamations ultérieures ayant le même objet ne suspendent pas la prescription.

3.—L'action prescrite ne peut plus être exercée, même sous forme d'une demande reconventionnelle ou d'une exception.

4.—Sous réserve des dispositions qui précèdent, la prescription est réglée par le droit national.

Article 18

Droit national

1.—A défaut de stipulations dans la présente Convention, le droit national est applicable.

2.—Pour l'application de cette Convention, on entend par «droit national» le droit de l'Etat sur le territoire duquel l'accident du voyageur s'est produit, y compris les règles relatives aux conflits de lois.

Article 19

Règles générales de procédure

Pour tous les litiges auxquels donne lieu l'application de la présente Convention, la procédure à suivre est celle du juge compétent, sous réserve des dispositions contraires insérées dans cette Convention.

Article 20

Exécution des jugements. Cautions

1.—Lorsque les jugements prononcés contradictoirement ou par défaut par le juge compétent, en vertu des dispositions de la présente Convention, sont devenus exécutoires d'après les lois appliquées par ce juge, ils deviennent exécutoires dans chacun des autres Etats contractants aussitôt après accomplissement des formalités prescrites dans l'Etat intéressé. La révision du fond de l'affaire n'est pas admise.

Cette disposition ne s'applique pas aux jugements qui ne sont exécutoires que provisoirement, non plus qu'aux condamnations en dommages-intérêts qui seraient prononcées, en sus des dépens, contre un demandeur à raison du rejet de sa demande.

Les transactions conclues entre les parties devant le juge compétent, en vue de mettre fin à une contestation, et au sujet desquelles un procès-verbal a été dressé judiciairement, ont valeur de jugement.

2.—La caution à fournir pour assurer le paiement des dépens ne peut être exigée à l'occasion des actions judiciaires fondées sur la présente Convention.

Article 21

Unité monétaire

Les sommes indiquées en francs dans la présente Convention sont considérées comme se rapportant au franc or d'un poids de 10/31 de gramme au titre de 0,900.

*Article 22**Transports mixtes*

1.—Sous réserve de la disposition du § 2, la présente Convention n'est pas applicable aux dommages survenus pendant le transport sur des lignes de services automobiles ou de navigation inscrites sur la liste des lignes prévue à l'article 59 de la CIV.

2.—Toutefois, lorsque les véhicules ferroviaires sont transportés par ferry-boat, la présente Convention est applicable aux dommages visés à l'article 2, § 1, et causés par un accident en relation avec l'exploitation ferroviaire survenu pendant que le voyageur séjourne dans les dits véhicules, qu'il y entre ou qu'il en sort.

Pour l'application du présent paragraphe, on entend par «Etat sur le territoire duquel l'accident s'est produit», l'Etat dont le ferry-boat bat le pavillon.

3.—Lorsque, par suite de circonstances exceptionnelles, le chemin de fer se trouve dans l'obligation d'interrompre provisoirement son exploitation et transporte ou fait transporter les voyageurs par un autre moyen de transport, il est responsable d'après le droit afférent à ce moyen de transport. Néanmoins, les dispositions des articles 13 à 17, 18, § 2, 19 et 20 de la présente Convention demeurent applicables.

*Article 23**Responsabilité en cas d'accidents nucléaires*

Le chemin de fer est déchargé de la responsabilité qui lui incombe en vertu de la présente Convention, lorsque le dommage a été causé par un accident nucléaire et que, en vertu des prescriptions spéciales en vigueur dans un Etat contractant réglant la responsabilité dans le domaine de l'énergie nucléaire, l'exploitant d'une installation nucléaire ou une autre personne qui lui est substituée est responsable de ce dommage.